CHAPTER 60 National Commission for Protection of Child Rights

Establishment

The National Commission for Protection of Child Rights is a statutory (and not a constitutional) body. It was set up in 2007 under a legislation enacted by the Parliament, namely the Commissions for Protection of Child Rights Act, 2005.[1]

The Commission has to protect, promote and defend child rights in the country. Under the Act, the 'child rights' includes the children's rights adopted in the United Nations Convention on the Rights of the Child on 20 November 1989 and ratified by the Government of India on 11 December 1992. Under this Convention, a child has been defined as a human being below the age of eighteen years.

The Commission would deal with the effective implementation of laws and programmes relating to children.

The objectives of the Commission are as follows[2]:

1. To take cognizance and redress matters pertaining to violation of the rights of the child.
2. To ensure that all laws, policies, programmes and administrative mechanisms are in consonance with the child rights perspective as enshrined in the Constitution of India as well as the United Nations convention on the Rights of the Child.

Composition

The Commission is an autonomous body. It operates under the administrative control of the Ministry of Women and Child Development, Government of India[3].

The Commission is a multi-member body consisting of a Chairperson and six members. Out of the six members, at least two should be women.

The Chairperson should be a person of eminence who has done outstanding work for promoting the welfare of children. The six members should be from amongst persons of eminence, ability, integrity, standing and experience in the following fields:

1. Education
2. Child healthcare, welfare or child development
3. Juvenile justice or case of neglected or marginalised children or children with disabilities
4. Elimination of child labour or children in distress
5. Child psychology or sociology
6. Laws relating to children